
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION (JOFOC)¹

JOFOC NUMBER²: ATF-26-0011

PROCUREMENT REQUEST (PR) NUMBER: DJA-26-AOIO-PR-0253

CO: Amanda Boshears, amanda.boshears@atf.gov

COR/GTR³: [REDACTED]

DATE: 03/26/26

This document serves as both the justification and approval for acquisitions conducted under the authorities for proposed procurements using other than full and open competition pursuant to the authority under [41 U.S. Code § 3304 – Use of Non-Competitive Procedures](#) and [Federal Acquisition Regulation \(RFO\) 6 – Competition Requirements](#).

1. Identification of the agency and contracting activity.

Requiring Agency:

The Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF)
Office of Intelligence Operation (OIO)
99 New York Avenue NE, 8.S 309
Washington, DC 20002
Technical POC: [REDACTED]
Email: [REDACTED]

Contracting/Ordering Activity:

The Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF)
Office of Management – Acquisitions Management Division
99 New York Avenue, NE
Washington, DC 20226
Contract Specialist/Contracting Officer Name: Amanda Boshears
Email: CS/CO's email: Amanda.Boshears@atf.gov

¹ This is also known as a Justification & Approval. It is the document required by the RFO that justifies and obtains approval for a sole-source contract.

² This is entered at or after small business review, including the header.

³ COR – Contracting Officer's Representative – services /GTR – Government Technical Representative – supplies/goods.

2. The nature and/or description of the action being approved.

ATF's intent is to issue a sole-source, firm-fixed-price contract to National Law-Enforcement Telecommunications System (NLETS), a 501(c)(3) non-profit organization that operates a secure, nationwide, computerized message-switching network that links state, local, federal, and international criminal justice agencies for information exchange. NLETS is located at 1918 W. Whispering Wind Dr. in Phoenix, AZ 85085.

3. A description of the supplies and/or services required, including the delivery schedule and/or the period of performance (including all option periods), and the estimated dollar value of the acquisition.

ATF needs secure access to exchange credible and critical, intelligence information with other law-enforcement, criminal-justice, and public-safety, related entities. Such information pertains to a variety of areas applicable to [REDACTED]

The NLETS also includes access to [REDACTED]

The anticipated period of performance is 5/1/2026 – 4/30/2031, consisting of one- (1-) base year and four- (4-) option years (OYs) for an estimated-total cost of \$ [REDACTED] per the breakout below.

Performance Period	OIO's Estimate
BY	[REDACTED] (05/01/2026 - 04/30/2027)
OY 1	[REDACTED] (05/01/2027 - 04/30/2028)
OY 2	[REDACTED] (05/01/2028 - 04/30/2029)
OY 3	[REDACTED] (05/01/2029 - 04/30/2030)
OY 4	[REDACTED] (05/01/2030 - 04/30/2031)

4. Identify statutory authority permitting limiting sources.

This acquisition is conducted under the authority of 41 U.S. Code § 3304 – Use of Non-Competitive Procedures and the exceptions listed under RFO 6.103 – Circumstances permitting other than full and open competition.. (Check the appropriate box for the authority – and bold the statement)

☒ **RFO 6.103-1 Only one responsible source and no other supplies or services will satisfy agency requirements.**

☐ RFO 6.103-2 Unusual and compelling urgency.

- ☐ RFO 6.103-3 Industrial mobilization; engineering, developmental, or research capability; or expert services.
- ☐ RFO 6.103-4 International agreement.
- ☐ RFO 6.103-5 Authorized or required by statute.
- ☐ RFO 6.103-6 – National Security
- ☐ RFO 6.103-7 Public Interest

5. A statement demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring use of the authority.

Per NLETS' letter dated February 20, 2026, which is attached, it is a '501(c) (3) not-for-profit corporation owned and operated by the 50 States, districts and territories known as the principal membership and is administered by a Board of Directors elected from those state law-enforcement agencies. It employs a small staff to run the system and network on a daily basis. It is unique in that it operates [REDACTED]

NLETS is the only vendor capable of satisfying this requirement based on the scope, reliability and totality of records made available to serve ATF's [REDACTED]

6. A description of efforts made to ensure offers/quotes were solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by RFO 5.3 and, if not, which exception under RFO 5.301 applies.

Since this requirement exceeds \$25,000, the Contracting Officer (CO) will post a Notice of Intent under the Contract Opportunities section of www.SAM.gov upon approval of this JOFOC.

7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the contracting officer that the anticipated cost to the government will be fair and reasonable.

The anticipated period of performance is 5/1/2026 – 4/30/2031, consisting of one- (1-) base year and four- (4-) option years (OYs) for an estimated-total cost of \$ [REDACTED] per the breakout below.

Performance Period	OIO's Estimate
BY	\$ [REDACTED] (05/01/2026 - 04/30/2027)
OY 1	\$ [REDACTED] (05/01/2027 - 04/30/2028)
OY 2	\$ [REDACTED] (05/01/2028 - 04/30/2029)
OY 3	\$ [REDACTED] (05/01/2029 - 04/30/2030)
OY 4	\$ [REDACTED] (05/01/2030 - 04/30/2031)

NLETS' user-access fee is currently \$ [REDACTED]/month and will increase to \$ [REDACTED]/month in January 2027. Since its principal membership sets the rates and charges the same fee to all users per its letter dated February 20, 2026, the CO determines its price is both fair and reasonable per RFO 12.204; this includes a uniform [REDACTED]% annual-escalation through 2031.

8. A description of the market research conducted and the results or the reason market research was not conducted.

a) OIO conducted an Internet search for [REDACTED] providers in early 2026 and found no other entities capable of providing credible, [REDACTED] information from [REDACTED] agencies, [REDACTED] other than NLETS.

Additionally, SAM displayed nine (9) agencies that had announced, solicited for and/or awarded a contract to NLETS for the access ATF needs within the last year: [REDACTED]

b) Access to NLETS is considered a commercial item that is not customarily available in the commercial marketplace but is made to meet the Federal Government's requirements. It does not have "minor modifications of a type not customarily available in the commercial marketplace made to meet Federal Government requirements and does not significantly alter the non-governmental function or essential physical characteristics of an item or component or change the purpose of a process".

c)The practices of firms engaged in producing, distributing, and supporting the required supplies or services include entering into contracts with commercial and/or government entities for these items, offering warranties, offering traditional buyer financing, providing maintenance, packaging and marking as requested by their customer.

d)No Environmental Protection Agency (EPA) or United States Department of Agriculture-(USDA-) designated items are being acquired; therefore, recovered materials need not be considered per RFO 23.1.

e) Consolidation is not necessary and does not need to be justified in separate documentation, regardless if the value will not exceed \$2M.

f) Bundling is not necessary and does not need to be justified in a separate documentation.

Currently, there continues to be no other viable competitors.

9. Any other facts supporting the use of other than full and open competition.

Without access to NLETS, ATF cannot properly function as a law-enforcement agency because it won't be able to query the necessary information [REDACTED]

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

Since this requirement has yet to be posted, no sources have expressed a written interest in it other than the service provider that provided the quote to the Program Office. The CO doesn't anticipate any responsible sources for this requirement since NLETS is the sole provider of accessibility to the type of data required by ATF. However, should firms respond to the posting via www.SAM.gov, OIO will review their capabilities and the CO will include its assessment in the file.

11. A statement of any actions the agency will take to remove or overcome any future barriers to competition.

The Acquisitions Management Division will continue utilizing bidding websites as well as other competitive procedures to promote competition to the maximum extent practicable, when required. Similarly, OIO will continue researching the marketplace and communicating with other agencies, to determine if similar products and/or services can meet its needs in the future.

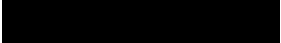
While this should remedy the restricted competition on future requirements of this technical nature, competition will most likely depend on the development of data exchange technologies within the local, state, federal, and international entities mentioned above.

As stated in Section 6 above, the CO will post this JOFOC, which is another way to remove/overcome competition barriers in the future. Also, the CO may consider issuing a request for information in the future to see if there are additional firms that can meet this requirement.

12. Certifications.

Co-Prepared by:

As the Contracting Officer's Representative (COR) or Government's Technical Representative (GTR), I certify the above information is accurate to the best of my knowledge and contains complete data/information necessary to support the recommendation and the basis for this justification.


Office of Intelligence Operations/Program Analyst

Date

As the Contracting Officer and based on the information presented by the program office, the information is complete and accurate to the best of my knowledge, and it is in the best interest of the US Government to pursue other than full and open competition for this requirement.

Amanda M. Boshears, Contracting Officer⁴
Mission Support Operations Branch
Acquisitions Management Division
Office of Management

Date

⁴ CO is the final approval for all actions \$750K and below.

Reviewed by:

	Date
Mission Support Operations Branch Acquisitions Management Division Office of Management	

Approved by:

Amanda M. Boshears, Contracting Officer ⁶	Date
Mission Support Operations Branch Acquisitions Management Division Office of Management	

⁵ For all actions over \$750K, Branch Chief review is required.

⁶ CO is the final approval for all actions \$750K and below.